

Ajay Vishvakarma @ Musai Vishvakarma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · WRIT - C No. - 20423 of 2022 · **Writ disposed; Para 6.8 objection with stay of recovery**

HEADNOTE

Writ against a tehsildar recovery citation for an electricity demand of Rs. 3,10,761 was disposed of without any opinion on merits. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks, to be decided after hearing within four weeks thereafter, with stay of coercive recovery for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Ajay Vishvakarma, approached the Allahabad High Court against a recovery citation dated 5 August 2021 issued by the Tehsildar, Tehsil Ghosi, District Mau, for Rs. 3,10,761 plus other charges, and sought a mandamus restraining coercive recovery. Counsel for the Power Distribution Corporation stated that the petitioner could file an objection to the demand, which would be decided in a time-bound manner. The Division Bench disposed of the writ on that statement, without examining the merits of the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para-6.8-objection-to-recovery-citation

HOLDING

Without expressing any opinion on merits, a consumer challenging a tehsildar recovery citation for an electricity demand may be relegated to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who shall decide it in accordance with law after affording reasonable opportunity of hearing; coercive action on the demand stands stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a tehsildar recovery citation for an electricity demand was disposed of by relegating the consumer to a Para 6.8 objection before the Executive Engineer, to be decided after hearing, without any opinion on merits. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Coercive action on the impugned demand was stayed for eight weeks or until disposal of the Para 6.8 objection, whichever is earlier, while the Executive Engineer was directed to decide the objection after reasonable opportunity of hearing. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 05.08.2021 AND THE UNDERLYING DEMAND OF RS. 3,10,761

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4